

25SMCV00916 25SMCV00916

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-25

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Case Number: 25SMCV00916 Hearing Date: August 25, 2026 Dept: P

Tentative

Ruling

Bradley

William Dietzler v. Robert Hazany, DDS, et al., Case No. 25SMCV00916

Motions:

(1)

Plaintiff's

Motion for Leave to Amend

(2)

Department

of Healthcare Services' Demurrer

(3)

West

Los Angeles Dentistry's Demurrer with Motion to Strike

Hearing

Date: August 25, 2026

Background

Plaintiff

Bradley William Dietzler sues Defendants Robert Hazany, DDS, West Los Angeles Dentistry, and the California Department of Health Care Services (DHCS) for

claims arising out of a dental procedure on December 9, 2024.

On

February 24, 2025, Dietzler filed the initial complaint against Hazany for dental malpractice and negligence.

On October

28, 2025, Dietzler filed the first amended complaint for general negligence against Hazany and DHCS.

On January

13, 2026, Dietzler filed proof of service on DHCS and Hazany.

On January

30, 2026, the Court rejected a pleading entitled "3rd amended complaint."

On January

30, 2026, Dietzler amended the complaint to name West Los Angeles Dentistry and DHCS as defendants.

On

February 2, 2026, the Court rejected a pleading entitled "2nd Amended Complaint."

On

February 4, 2026, Dietzler filed a Motion for Leave to Amend the 2nd Amended Complaint.

On March

2, 2026, Dietzler filed a Motion re: Incorrect Hearing Date on Motion for Leave to Amend, stating that he served a "2nd Amended Complaint" on the Defendants but was unable to file it with the Court.

On March

2, 2026, the Court rejected two pleadings entitled "Amended Complaint."

On March

3, 2026, the Court rejected a pleading entitled "2nd Amended Complaint."

On March

6, 2026, the Court denied Dietzler's ex parte motion for Leave to Amend.

On April

10, 2026, West Los Angeles Dentistry filed its demurrer.

On May 21,

2026, DHCS filed its demurrer.

On May 22,

2026, the Court rejected a pleading entitled "2nd Amended Complaint"

On July

29, 2026, the Court denied Dietzler's ex parte application to file a correct amended complaint.

On July

30, 2026, Dietzler filed the Motion for Leave to Amend.

On July

30, 2026, West Los Angeles Dentistry filed a reply to its demurrer indicating that it did not oppose Dietzler's motion for leave to amend.

The

operative pleading in this case is the October 28, 2025, First Amended Complaint. Both demurrers are to a Second Amended Complaint that is not the operative pleading, and both were filed well outside of the deadline for demurring to the October 28, 2025 First Amended Complaint. Additionally, Dietzler's motion for leave to amend is procedurally defective because he does not attach the proposed amended complaint or the required declaration.

The

procedural record of this case is, charitably, messy. No one opposes allowing Dietzler to amend the operative complaint, so in the interests of justice, judicial economy, and expediency, Dietzler is ordered to file and serve an amended complaint within ten days. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 ["Trial courts are vested with the discretion to allow amendments to pleadings 'in furtherance of justice.' That trial courts are to liberally permit such amendments, at any stage of the

proceeding, has been established policy in this state since 1901.”].)

Defendants can then respond to the operative pleading so that the issues raised in the demurrers can be teed up in a procedurally correct manner.